

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1622

By: George

AS INTRODUCED

An Act relating to crimes and punishments; amending 21 O.S. 2021, Section 1731, as amended by Section 1, Chapter 176, O.S.L. 2024 (21 O.S. Supp. 2024, Section 1731), which relates to larceny of merchandise from a retailer; modifying threshold amounts for certain penalties; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 1731, as amended by Section 1, Chapter 176, O.S.L. 2024 (21 O.S. Supp. 2024, Section 1731), is amended to read as follows:

Section 1731. A. Larceny of merchandise held for sale in retail or wholesale establishments shall be punishable as follows:

1. For the first or second conviction, in the event the value of the goods, edible meat, or other corporeal property which has been taken is less than ~~One Thousand Dollars (\$1,000.00)~~ Five Hundred Dollars (\$500.00), the person shall be guilty of a misdemeanor punishable by imprisonment in the county jail for a term not exceeding thirty (30) days, and by a fine not less than Ten

1 Dollars (\$10.00) nor more than Five Hundred Dollars (\$500.00);
2 provided, for the first or second conviction, in the event more than
3 one item of goods, edible meat, or other corporeal property has been
4 taken, punishment shall be by imprisonment in the county jail for a
5 term not to exceed thirty (30) days, and by a fine not less than
6 Fifty Dollars (\$50.00) nor more than Five Hundred Dollars (\$500.00);

7 2. For a third or subsequent conviction, in the event the value
8 of the goods, edible meat, or other corporeal property which has
9 been taken is less than ~~One Thousand Dollars (\$1,000.00)~~ Five
10 Hundred Dollars (\$500.00), the person shall be guilty of a
11 misdemeanor and shall be punished by imprisonment in the county jail
12 for a term not to exceed one (1) year, and by a fine not exceeding
13 One Thousand Dollars (\$1,000.00);

14 3. In the event the value of the goods, edible meat, or other
15 corporeal property is ~~One Thousand Dollars (\$1,000.00)~~ Five Hundred
16 Dollars (\$500.00) or more but less than Two Thousand Five Hundred
17 Dollars (\$2,500.00), the person shall be guilty of a felony and
18 shall be punished by imprisonment in the custody of the Department
19 of Corrections for a term not to exceed two (2) years, and by a fine
20 not to exceed One Thousand Dollars (\$1,000.00);

21 4. In the event the value of the goods, edible meat, or other
22 corporeal property is Two Thousand Five Hundred Dollars (\$2,500.00)
23 or more but less than Fifteen Thousand Dollars (\$15,000.00), the
24 person shall be guilty of a felony and shall be punished by

1 imprisonment in the custody of the Department of Corrections for a
2 term not to exceed five (5) years, and by a fine not to exceed One
3 Thousand Dollars (\$1,000.00); or

4 5. In the event the value of the goods, edible meat, or other
5 corporeal property is Fifteen Thousand Dollars (\$15,000.00) or more,
6 the person shall be guilty of a felony and shall be punished by
7 imprisonment in the custody of the Department of Corrections for a
8 term not to exceed eight (8) years, and by a fine not to exceed One
9 Thousand Dollars (\$ 1,000.00).

10 B. When three or more separate offenses under this section are
11 committed within a one-hundred-eighty-day period, the value of the
12 goods, edible meat, or other corporeal property involved in each
13 larceny offense may be aggregated to determine the total value for
14 purposes of determining the appropriate punishment under this
15 section.

16 C. In the event any person engages in conduct that is a
17 violation of this section in concert with at least one other
18 individual, such person shall be liable for the aggregate value of
19 all items taken by all individuals. Such person may also be subject
20 to the penalties set forth in Section 421 of this title, which shall
21 be in addition to any other penalties provided for by law.

22 D. Any person convicted pursuant to the provisions of this
23 section shall also be ordered to pay restitution to the victim as
24 provided in Section 991f of Title 22 of the Oklahoma Statutes.

SECTION 2. This act shall become effective November 1, 2025.

60-1-10030 GRS 12/16/24